Certification Under the Regulatory Flexibility Act

Pursuant to the provisions of 5 U.S.C. 605(b), I hereby certify that this authorization will not have a significant economic impact on a substantial number of small entities. This authorization effectively suspends the applicability of certain Federal regulations in favor of the District's program, thereby eliminating duplicative requirements for handlers of hazardous waste in the District. This rule, therefore, does not require a regulatory flexibility analysis.

List of Subjects in 40 CFR Part 271

Hazardous materials, Indian lands, Reporting and record keeping requirements, Waste treatment and disposal, Intergovernmental relations, Penalties, Confidential business information.

Authority

This notice is issued under the authority of Sections 2002(a), 3006, and 7004(b) of the Solid Waste Disposal Act as amended, 42 U.S.C 6912(a), 6926, and 6974(b).

Dated: February 14, 1985.

Stanley L. Laskowski,

Acting Regional Administrator.

[FR Doc. 85-5581 Filed 3-7-85; 8:45 am]

BILLING CODE 6560-50-M

DEPARTMENT OF THE INTERIOR

Bureau of Land Management

43 CFR Public Land Order 6589

[NM 42705, NM 42706, NM 42707]

NM; Public Land Order 6459; Correction

AGENCY: Bureau of Land Management, Interior.

ACTION: Public Land Order.

SUMMARY: This document will correct an error in the land description in Public Land Order 6459 of August 16, 1983.

EFFECTIVE DATE: March 8, 1985.

FOR FURTHER INFORMATION CONTACT: Pauline Brown, Bureau of Land Management, New Mexico State Office, P.O. Box 1449, Santa Fe, New Mexico 87501, 505-988-6635.

SUPPLEMENTARY INFORMATION: By virtue of the authority vested in the Secretary of the Interior by section 204 of the Federal Land Policy and Management Act of 1976, 90 Stat. 2751; 43 U.S.C. 1714, it is ordered as follows:

The land description in Public Land Order 6459 of August 16, 1983, in FR Doc. 83-24687 published at page 40725 in the issue of September 9, 1983, is corrected as follows: "On page 40725, second column, the last line of the land description reading "T. 30 S., R. 21 W." should read "T. 30S., R. 22W."

Robert N. Broadbent,

Assistant Secretary of the Interior.

February 28, 1985.

[FR Doc. 85-5475 Filed 3-7-85; 8:45 am]

BILLING CODE 4310-84-M

DEPARTMENT OF TRANSPORTATION

Coast Guard

46 CFR Parts 50, 52, 53, 54, 58, 63 and 162

[CGD 81-079]

Marine Engineering Regulations for Merchant Vessels; Acceptance of ASME S, E, A and H Symbol Stamps for Power and Heating Boilers

AGENCY: Coast Guard, DOT.

ACTION: Final rule.

SUMMARY: These regulations replace the current Coast Guard requirements for plan approved and shop inspection of boilers with requirements that boilers be inspected and stamped in accordance with the American Society of Mechanical Engineers' Boiler and Pressure Vessel Code. These regulations bring Coast Guard requirements for boilers in line with current industry practice and take maximum advantage of an industry safety standard which is recognized throughout the world and an inspection system already in existence. Several boiler and pressure vessel manufacturers have requested a changeover to ASME inspection and stamping because of frequent delays involved in having plan approval and shop inspections performed by the Coast Guard. ASME inspectors are more readily available to perform shop inspections in a timely manner, and the use of registered professional engineers to certify plans will minimize the time needed for Coast Guard pre-installation inspections.

EFFECTIVE DATE: These rules become effective May 7, 1985.

ADDRESSES: A copy of the final evaluation may be obtained from Commandant (G-CMC/44), (CGD 81-079), U.S. Coast Guard, Washington, D.C. 20593.

FOR FURTHER INFORMATION CONTACT: Mr. Howard L. Hime, Office of Merchant Marine Safety, (202) 426-2160.

SUPPLEMENTARY INFORMATION: On August 18, 1983 the Coast Guard published a proposal in the **Federal Register** (48 FR 37441) concerning these regulations. Interested persons were given an opportunity to submit written comments and 12 comments were received. Two of the comments have been adopted and the regulations have been changed to reflect these comments. These changes to the regulations are discussed under the Specific Comments section below.

Drafting Information

The principal persons involved in drafting this document are Mr. Howard Hime, Project Manager, Office of Merchant Marine Safety, and Lieutenant Commander William B. Short, Project Attorney, Office of Chief Counsel.

Discussion of Comments

General

1. One commenter objected to the proposed regulations citing the lack of requirements for an independent review of the design and that the entire design, construction, and inspection would be under the control of persons not required to have any marine experience. Since 1968, Coast Guard regulations have incorporated the design, construction, and inspection requirements of the ASME Code, modifying the requirements where necessary to account for the marine environment. These regulations extend the adoption of the ASME Code to include certification of boiler plans by a registered professional engineer, inspection by an ASME authorized inspector, and stamping by an ASME accredited manufacturer. Independent review is retained by the requirement for the plans to be certified by a registered professional engineer and submitted to the Coast Guard for review. During the review, those aspects of the boiler design which are peculiar to the marine environment will be analyzed to assure compliance with the regulations. Further, the marine inspector at the shipyard will inspect the boiler to assure compliance with the regulations. The commenter further stated that there is no provision in the proposed rule change for the Coast Guard to receive a copy of the Manufacturer's Data Report Forms. Sections 52.01-145 and 53.10-15 require these forms to be made available to the marine inspector for review.

2. One commenter suggested that certification by The American Bureau of Shipping (ABS) be included as an alternative to ASME inspection and stamping of boilers. This suggestion was not adopted since ABS is permitted to